

SUPERIOR COURT OF THE STATE OF CALIFORNIA
IN AND FOR THE COUNTY OF SANTA CLARA

VICTOR MILLER,	)	Case No. 25CV462726
Plaintiff,	)	
	)	
vs.	)	Tentative Ruling on Defendant's Demurrer
	)	to the First Amended Complaint
SANTA CLARA COUNTY FAMILY	)	
COURT,	)	
Defendant	)	
	)	

Defendant Superior Court of California, County of Santa Clara (Defendant), sued as Santa Clara County Family Court, demurred to Plaintiff's First Amended Complaint (FAC) and the demurrer is SUSTAINED WITHOUT LEAVE TO AMEND.

The FAC fails to allege facts sufficient to constitute a cause of action. Defendant in this case includes judicial officers whose alleged misconduct is protected by judicial immunity. "It is well established judges are granted immunity from civil suit in the exercise of their judicial functions." (Soliz v. Williams (1999) 74 Cal.App.4th 577, 585.)

The court in Howard v. Drapkin (1990) 222 Cal.App.3d 843, 852, explained that one of the purposes of judicial immunity is to preclude the type of collateral attack on judicial decisions that is advanced in the FAC in this case: "The rationale behind the doctrine is twofold. First, it 'protect[s] the finality of judgments [and] discourag[es] inappropriate collateral attacks.' [Citation.] Second, it 'protect[s] judicial independence by insulating judges from vexatious actions prosecuted by disgruntled litigants.'" (Howard, 222 Cal.App.3d at 852.)

A judge's alleged "errors may be corrected on appeal, but he should not have to fear that unsatisfied litigants may hound him with litigation charging malice or corruption." (Ibid.) Plaintiff's recourse for judicial errors was with the Court of Appeal.

Because the judges of the superior court are immune, Defendant Superior Court is also immune. (Gov. Code, § 815.2(b).)

Judicial immunity bars all of the claims made in the FAC, and further amendment to the complaint will be futile.

Because the court sustains the demurrer without leave to amend, it need not address the remaining arguments set forth in the demurrer.

Defendant shall file a request for dismissal (Jud. Council Form CIV-110) within 10 days of this order.